

IN THE FAMILY DIVISION
IN THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
IN AND FOR THE COUNTY OF WASHOE

DONOVAN CLARK,

Plaintiff,

vs.

MEGAN MCCAFFERTY,

Defendant.

Case No. DV25-01799

Dept. No. 2

ORDER DENYING MOTION TO CONSOLIDATE;

ORDER ADMONISHING

Presently before the Court is a *Motion to Consolidate* (“Motion”) filed and submitted May 24, 2026, by Donovan Clark (“Mr. Clark”). On May 27, 2026, Megan McCafferty (“Ms. McCafferty”) filed her *Opposition to Motion Consolidate* (“Opposition”). The Court now finds and orders as follows.

The parties in this action are scheduled to appear before the Court for trial on all remaining issues in contest on **July 6, 2026, at 1:30 p.m.**

In his Motion, Mr. Clark requests the Court consolidate the parties’ existing protection order case TPO26-00844 with the above-captioned action. Mr. Clark filed and submitted his Motion on the same date and cites NRS 199.310 in support of his request for relief. Mr. Clark’s writing and citation to legal authority once again appears to be made and based upon use of AI generation and relies upon completely inapplicable legal authority.

1 Nonetheless, Mr. Clark indicates on May 22, 2026, Ms. McCafferty filed an application for
2 a temporary protection order against Mr. Clark. He notes the parties are scheduled to
3 appear before the Court Commissioner on June 9, 2026, for a hearing on Ms. McCafferty's
4 application.

5 Mr. Clark is concerned that allowing the Court Commissioner to adjudicate TPO26-
6 00844 in a vacuum—without the requisite background information—would force him to
7 litigate identical custody issues in two (2) separate courtrooms within a sixteen (16) day
8 window. Moreover, Mr. Clark alleges Ms. McCafferty's application for a protection order is
9 made in bad faith and is a tactical deployment designed to disrupt the parties' upcoming
10 evidentiary hearing. Mr. Clark maintains his request for consolidation is made to preserve
11 limited judicial resources and to prevent conflicting custodial orders. Mr. Clark also alleges
12 the Court is in possession of "Master Trial Binders" – referring to unidentified and
13 unknown material which this Court has not reviewed.¹

14 In her Opposition, Ms. McCafferty requests the Court deny Mr. Clark's Motion
15 because the different cases deal with different issues. She asserts she is not seeking a change
16 in custody by way of the protection order case and maintains the application for the
17 protection order was filed for her safety and to reduce conflict while the parties'
18 divorce/custody case is resolved. She further notes Mr. Clark has previously attempted, and
19 failed, to consolidate the parties' cases and asserts there have been no changes in
20 circumstances warranting such relief.

21 The Due Process Clause of the Fourteenth Amendment to the United States
22 Constitution requires proper notice be given to an individual before his rights will be
23 adjudicated. The United States Supreme Court has stated, "[a]n elementary and
24 fundamental requirement of due process in any proceeding which is to be accorded finality
25 is notice reasonably calculated, under all the circumstances, to apprise interested parties of
26 the pendency of the action and afford them an opportunity to present their objections."

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28 ¹ This Court is ethically prohibited from considering exhibits that may have been delivered to the Court
unless or until such material is admitted into evidence. This Court is unaware whether any such "binder" or
documents have even been provided.

1 *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314, 70 S.Ct. 652, 657, 94
2 L.Ed. 865 (1950) (citations omitted).

3 WDCR 12 requires a moving party to wait fourteen (14) days before requesting
4 submission of a request. *See also* DCR 13. If service is completed by mail, the time for
5 opposition is extended an additional three (3) days. These rules ensure the opposing party
6 has adequate time to review the request and file a response if he so chooses. If a response
7 is filed, the moving party has seven (7) days in which to file a reply to the response, after
8 which time either party may submit the request for decision. If the opposing party does not
9 file a response, the moving party may request submission of the request after the fourteen
10 (14) days have expired.

11 In this case, Mr. Clark submitted his Motion immediately after filing, thereby
12 depriving Ms. McCafferty of her opportunity to respond or oppose pursuant to WDCR 12
13 and DCR 13. Mr. Clark must wait until after Ms. McCafferty files her written opposition, if
14 any, or the expiration of her time for filing an opposition (fourteen days after service via
15 eFlex or fourteen days plus an additional three days if service of the motion is made by
16 mail). Nevertheless, in light of Ms. McCafferty having filed an opposition, and in an effort
17 to preserve this Court's limited judicial resources, the Court considers Mr. Clark's Motion
18 on the merits.

19 Pursuant to Nevada Rules of Civil Procedure rule 42, if actions before the court
20 involve a common question of law or fact, the court may joint for hearing or trial any or all
21 matters at issue, consolidate the actions, or issue any other orders to avoid unnecessary
22 cost or delay. Moreover, the Supreme Court of Nevada has held that in considering requests
23 for consolidation this Court has "broad, but not unfettered, discretion in ordering
24 consolidation." *Marcuse v. Del Webb Cmtys., Inc.*, 123 Nev. 278, 286, 163 P.3d 462, 468
25 (2007).

26 Consolidation remains within the discretion of this Court and, in this case, the Court
27 does not find good cause for consolidation of the parties' cases. Indeed, consolidation of the
28 actions would create—rather than avoid—unnecessary delay in resolution of Ms.

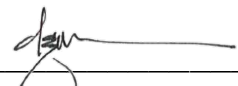
1 McCafferty's application for a protection order. The Court Commissioner's docket allows
2 the issue of the protection order to be heard and resolved on an expedited basis while this
3 Court's calendar does not. In light of the foregoing, Mr. Clark's *Motion to Consolidate* is
4 hereby DENIED.

5 Furthermore, Mr. Clark is hereby ADMONISHED for filing and submitting his
6 motion on the same date, thereby depriving Ms. McCafferty of her right to oppose the
7 requested relief. Moreover, the Court is concerned with what appears to be continued use
8 of AI and citation to inapplicable law. Continued violation of Nevada, including violation of
9 Ms. McCafferty's right to due process, may result in this Court's imposition of sanctions,
10 including but limited to at least a fine and/or imposition of community service. Whether
11 such sanctions should be imposed is reserved to be addressed at the time of trial after
12 consideration of Mr. Clark's financial circumstances and after affording him an opportunity
13 to defend his conduct outlined above.

14 Parties are encouraged to seek the advice of a licensed attorney or utilize the online
15 resource center at <https://www.washoecourts.com/ResourceCenter>. Petitioners may also
16 wish to speak with a family law lawyer at no cost through the Law Library's "Lawyer in the
17 Library" program (See <https://www.washoecourts.com/lawlibrary/lawyerinlibrary>).

18 **IT IS SO ORDERED.**

19 DATED: May 29, 2026.

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23 DIXIE GROSSMAN
24 DISTRICT JUDGE
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CERTIFICATE OF SERVICE

Pursuant to NRCP 5(b), I hereby certify that I am an employee of the Second Judicial District Court of the State of Nevada, County of Washoe; that on this ____ day of May, 2026, I deposited for mailing, first class postage pre-paid, at Reno, Nevada, a true and correct copy of the foregoing document addressed to:

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CERTIFICATE OF ELECTRONIC SERVICE

I hereby certify that on ^{June} 1 of ~~May~~, 2026, I electronically filed the foregoing with the Clerk of the Court by using the ECF system which will send a notice of electronic filing to the following:

MEGAN MCCAFFERTY

DONOVAN CLARK


Judicial Assistant